

Opinion of the Court

dermine the agents' effectiveness and morale. Mexico has an interest in exercising sovereignty over its territory and in protecting and obtaining justice for its nationals. It is not our task to arbitrate between them.

In the absence of judicial intervention, the United States and Mexico would attempt to reconcile their interests through diplomacy—and that has occurred. The broad issue of violence along the border, the occurrence of cross-border shootings, and this particular matter have been addressed through diplomatic channels. In 2014, Mexico and the United States established a joint Border Violence Prevention Council, and the two countries have addressed cross-border shootings through the United States-Mexico bilateral Human Rights Dialogue.² Following the Justice Department investigation in the present case, the United States reaffirmed its commitment to “work with the Mexican government within existing mechanisms and agreements to prevent future incidents.” DOJ Press Release.

For these reasons, petitioners' assertion that their claims have “nothing to do with the substance or conduct of U. S. foreign . . . policy,” Brief for Petitioners 29, is plainly wrong.³

² See Dept. of Homeland Security, Written Testimony for House Committee on Oversight and Govt. Reform Hearing (Sept. 9, 2015), <https://www.dhs.gov/news/2015/09/09/written-testimony-dhs-southern-border-and-approaches-campaign-joint-task-force-west> (discussing creation of Border Violence Prevention Council); Dept. of Homeland Security, Border Violence Prevention Council Fact Sheet, <https://www.dhs.gov/sites/default/files/publications/bvpc-fact-sheet.pdf> (outlining areas of collaboration); Dept. of State, Joint Statement on the U. S.-Mexico Bilateral High Level Dialogue on Human Rights (Oct. 27, 2016), <https://2009-2017.state.gov/r/pa/prs/ps/2016/10/263759.htm> (noting discussion of “the use of force at the border”).

³ It is no answer to argue, as Mexico does, that refusing to extend *Bivens* “is what [would] negatively affect international relations.” Brief for Government of United Mexican States as *Amicus Curiae* 12. When a third party intervenes and takes sides in a dispute between two countries, one country is likely to be pleased and the other displeased. But no matter which side the third party supports, it will have injected itself into their relations.